

Tentative Rulings for July 17, 2026 Department 10

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 10 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 888 5460**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402696	SALAZAR VS COUNTY OF RIVERSIDE	MOTION FOR SUMMARY JUDGMENT ON 1ST AMENDED COMPLAINT FOR AUTO (OVER \$35,000) OF OSCAR SALAZAR

Tentative Ruling: The Court **GRANTS** Defendants County of Riverside and Nathan John Morgan's Motion for Summary Judgment.

Facts/Procedural Summary

This is a wrongful death action. Plaintiffs Oscar Salazar and Benigna Salazar are the father and mother of Decedent, Rafaela Adaly Salazar-Ruiz. Decedent died on May 25, 2023. Plaintiffs allege Decedent was a pedestrian crossing southbound on Cactus Street at approximately 3:54 a.m. Defendant Nathan Morgan was operating a 2020 Ford PIUV in the course and scope of his employment with the Riverside County Sheriff. (First Amended Complaint ¶21.) Plaintiffs allege Morgan struck Decedent with his car which resulted in Decedent's untimely death.

Defendants bring the instant motion for summary judgment. The motion was previously set for hearing on April 6, 2026, and was originally unopposed. At the hearing, the court continued the motion to be heard on June 24, 2026. On April 6, 2026, Defendants filed the missing declaration of Joshua F. Cervantes.

Defendants' motion is based on Plaintiffs' admissions made during discovery. On January 15, 2025, Defendant County of Riverside served Request for Admissions, Set One to Plaintiff Oscar Salazar. On January 16, 2025, Defendant served Request for Admissions, Set One to Plaintiff Benigna Salazar. Both Plaintiffs failed to provide responses to the Requests. (SUMF Nos. 1-4.)

On June 4, 2025, Defendant filed motions to deem Request for Admissions, Set One, to both Plaintiffs admitted due to their failure to provide responses. The motions were heard on August 18, 2025. (SUMF Nos. 5-7.) The Court granted the motions and deemed Plaintiffs to have admitted every request contained in the Request for Admissions. (SUMF Nos. 8-9.) Based upon these admissions, Defendants argue the instant motion for summary judgment must be granted.

Plaintiff Benigna Salazar opposes the motion. The Opposition consists of a two-page declaration where Plaintiff argues she does not believe the case should be decided on "paperwork and technical issues." Plaintiff notes she is representing herself and although she has tried to comply with the court deadlines, she has had difficulty following the legal process. Plaintiff further argues she requested an interpreter but was not provided with one. However, it is not clear when exactly Plaintiff requested an interpreter or was denied access to one.

In Reply, Defendants argue Plaintiff has not set forth any triable issues of material fact meaning the motion must be granted.

Analysis

I. Standard on Motion for Summary Judgment

Summary judgment is granted when a moving party establishes the right to entry of judgment as a matter of law. (CCP § 437c(c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (CCP § 437c(p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Defendant, as the moving party, has the burden to show either that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. (CCP § 437c(p)(2).) Defendant can meet their burden by showing either: (1) affirmative evidence that shows an element of the claim cannot be established; or (2) showing an absence of evidence on a critical element of Plaintiff's claim.

Once the moving party has made such a showing, the burden shifts to the responding party to show that a triable issue of one or more material facts exists as to that cause of action or as to a defense to the cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.) If the responding party does not make such a showing, summary judgment in favor of the moving party is appropriate.

"The purpose of the summary judgment procedure is not to try the issues but merely to discover ... whether the parties *possess evidence* which demands the analysis of trial." (*Colvin v. City of Gardena* (1992) 11 Cal.App.4th 1270, 1275 (italics added).) Summary judgment can be granted only where the essential facts are either conceded or beyond dispute. If there is one single material fact in dispute, the motion must be denied.

The court also has the power to summarily adjudicate that one or more causes of action have no merit, that there is no merit to one or more affirmative defenses, or that a defendant owed or did not owe a duty to plaintiff. A motion for summary adjudication shall only be granted if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (CCP § 437c(f)(1).)

II. Wrongful Death/Negligence

The only claims remaining in this action are the single cause of action for general negligence asserted by Plaintiffs Oscar Salazar and Benigna Salazar. (SUMF Nos. 55-61.) The wrongful death cause of action gives the representatives of a decedent as totally new right of action to compensate the heirs for the loss of companionship or other losses suffered as a result of the decedent's death. (*Quiroz v. Seventh Ave. Center* (2006) 140 Cal. App. 4th 1256, 1263.) The elements of a wrongful death cause of action are: (1) wrongful act or neglect on the part of one or more persons that (2) causes (3) the death of another person. (*Norbart v. Upjohn Co.* (1999) 21 Cal. 4th 383, 390.) To establish proximate cause in a wrongful death case, the wrongful act must be a

substantial factor in bringing about the death. (*Bromme v. Pavitt* (1992) 5 Cal. App. 4th 1487, 1497.) “The actor’s negligent conduct is not a substantial factor in bringing about harm to another if the harm would have been sustained even if the actor had not been negligent.” (*Id* at 1498.)

As noted above, this motion is based entirely on Plaintiffs’ admissions by failure to respond to Request for Admissions. Both Plaintiffs have admitted to the following:

- Plaintiffs sustained no damage as a result of the incident;
- Plaintiffs lack standing to bring the claims alleged in the Complaint;
- Decedent was negligent at the time of the incident;
- Decedent’s negligence contributed to the incident;
- Decedent is comparatively at fault for the incident;
- Plaintiffs did not receive economic or financial support from Decedent;
- Plaintiffs do not have any evidence to support their theory that County or Nathan Morgan are at fault for the incident;
- Defendants did not cause or contribute to the incident;
- Decedent caused the incident;
- Decedent had a history of drug use prior to the incident;
- Plaintiffs obtained custody of Decedent’s children due to Decedent’s drug use. (SUMF Nos. 11 – 53.)

Given the above admissions, Defendants have met their initial burden on summary judgment. Plaintiff Benigna Salazar’s Opposition does not include any evidence that creates triable issues of material fact. Plaintiff Oscar Salazar has not filed any Opposition to the motion and, as a result, has not demonstrated any triable issue of material fact.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2503641	WISE VS DC LOGISTICS	MOTION TO BE RELIEVED AS COUNSEL FOR DC LOGISTICS

Tentative Ruling: The Court DENIES the Motion to be Relieved as Counsel for DC Logistics. Rule 3.1362 of the California Rules of Court specify the requirements for Motions to be Relieved as Counsel. That rule provides, in part: “The notice of motion and motion, the declaration, and the proposed order **must be served on the client** and on all other parties who have appeared in the case.” (emphasis added.) Here, the proofs of service attached to the Notice of Motion and Declaration in Support of Attorney’s Motion to be Relieved as Counsel, both filed June 12, 2026, reflect that the only persons served were the attorneys for plaintiff. The Proof of Service for the Proposed Order, filed June 26, 2026, reflects the same.

3.

CASE #	CASE NAME	HEARING NAME
CVME2513565	JAFARI VS CILING	MOTION TO AUTHENTICATE JUDGMENT LIEN FILINGS AND COMPEL ENFORCEMENT ACCOUNTING BY SAMMY CILING

Tentative Ruling: The Court **DENIES** Defendants' Motion to Authenticate Judgment Lien Filings, Compel Enforcement Accounting, and for Related Disclosure of Enforcement Instruments the Motion.

Plaintiff brings this creditor's suit to enforce a judgment entered on April 13, 2021 in favor of Plaintiff and against Sammy Ciling and Anke Ciling in a Los Angeles Superior Court matter for, among other things, breach of fiduciary duty, fraud, conversion, and identity theft. That judgment (hereafter "the LA Judgment") is now more than \$4.2 million. In enforcing the LA Judgment, Plaintiff has recovered two parcels of property with a court determined value of \$950,000 and less than \$5000 in cash. In this lawsuit, Plaintiff contends Sammy Ciling ("Sam") and Anke Ciling ("Anke") have attempted to hide assets by transferring things of value to their children – Hunter Ciling, Nicolas Ciling, and Tristine Ciling. Plaintiff's complaint asserts the following causes of action: (1) creditors suit against US Capital, Inc. Hunter Ciling, Nicolas Ciling, and Tristine Ciling; (2) creditor's suit against San Diego County Credit Union; (3) conspiracy to engage in fraudulent conveyance against Hunter Ciling, Nicolas Ciling, and Tristine Ciling; (4) civil conspiracy to defraud and obstruct enforcement of judgment against Sam Ciling, Anke Ciling, Hunter Ciling, Nicolas Ciling, and Tristine Ciling; and (5) aiding and abetting fraud against Hunter Ciling, Nicolas Ciling, and Tristine Ciling.

Sam Ciling ("Sam") and Anke Ciling ("Anke") bring this motion. They ask for an order requiring Plaintiff to identify and authenticate each judgment lien, UCC filing, abstract, notice, or other enforcement filed, recorded, or asserted against them. They also ask for order requiring certain information to be provided regarding the aforementioned documents; Plaintiff to identify all credits/amounts recovered; an accounting by Plaintiff; Plaintiff to identify the factual and legal basis for any claimed balance exceeding the original judgment amount; and the production of records to verify the amounts being asserted in support of the ongoing enforcement efforts.

In opposition, Plaintiff contends that Sam and Anke fail to identify any authority that allows them the relief they seek. He argues that an accounting cannot be sought via a motion and should be sought through a cause of action. It asserts that Sam and Anke are not entitled to an accounting.

In reply, Sam and Anke assert that they are entitled to an accounting. They argue that Plaintiff is relying on unsupported accusations. They argue that evidence supports the need for an accounting.

ANALYSIS

This is Sam and Anke's second motion seeking an accounting. The first motion sought an accounting due to Plaintiff's court order control over Sam and Anke's businesses, financial systems, accounts receivable, and physical facilities. (Defendants Sammy Ciling and Anke Ciling's Motion for Verified Accounting, Limitation of Enforcement, and Related Relief, 2:5-3:18,) This motion seeks an accounting regarding the amount that Plaintiff contends is currently owed. (Motion to Authenticate Judgment Lien Filings and Compel Enforcements Accounting, and for Related Disclosure of Enforcement Instruments, 2:3-16.) Due to this, it does not appear that this motion is a motion for reconsideration under CCP § 1008. However, the Court's reasoning regarding the request for accounting in Sam and Anke's first motion applies.

An accounting is an equitable remedy that can be asserted in an independent lawsuit, not in a motion. (*St. James Church of Christ Holiness v. Superior Court of Los Angeles County* (1955) 135 Cal.App.2d 352, 359.) Accounting is not a discovery shortcut or the right to obtain a stay of judgment enforcement without posting a bond. "[T]he nature of a cause of action in accounting is unique in that it is a means of discovery. An accounting is a 'species of disclosure, predicated upon the plaintiff's legal inability to determine how much money, if any, is due.' Thus, the purpose of the accounting is, in part, to discover what, if any, sums are owed to the plaintiff, and an accounting may be used as a discovery device." (See *Teselle v. McLoughlin* (2009) 173 Cal. App. 4th 156, 180.) Accounting is proper only where the facts show a relationship and transactions that make such relief appropriate; it is not available on speculation or as a means to force the opposing party to disprove imaginary credits. (*Id.* at 179.) Here, Sam and Anke have failed to show that an accounting is allowed outside a cause of action. Additionally, they have not shown they are entitled to an accounting. While they have shown that there are five notices of judgment liens filed with the California Secretary of State that identify different judgment debtors and some of them have different amounts required to satisfy the judgment, they fail to provide any evidence that they are unclear of the amount of funds collected from them to satisfy the debt owed. The filing of judgment liens does not mean that any funds have been collected.

Sam and Anke also fail to establish entitlement to the other relief sought in this motion – information regarding judgment liens, UCC filing, abstract, notice, or other enforcement filed, recorded, or asserted against them; the identification of all credits/amounts recovered; the factual and legal basis for any claimed balance exceeding the original judgment amount; and the production of records to verify the amounts being asserted in support of the ongoing enforcement efforts. They cite to no statutory provisions or case law that allow the relief sought simply by bringing a motion.